



File No.: EXP202304524

RESOLUTION OF SANCTIONING PROCEDURE

From the procedure initiated by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: As a result of a complaint filed with the Spanish Agency for Data Protection, indications of a possible breach of the provisions of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR) were noted, leading to the initiation of actions under file number EXP202209743. The complaint was accepted for processing on February 11, 2022.

SECOND: The General Subdirectorate for Data Inspection proceeded to carry out preliminary investigative actions to clarify the facts in question, by virtue of the investigative powers granted to control authorities under Article 57.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions established in Title VII, Chapter I, Section Two, of the aforementioned LOPDGDD.

In the framework of the investigative actions, two requests for information were sent to ADENET SYSTEMS, S.L., with NIF B47387253, regarding the complaint mentioned in the first section, requiring that, within ten working days, it submit to this Agency the information and documentation specified therein. The first request was registered as sent on February 28, 2022, while the second was registered on March 29, 2022.

THIRD: The requests for information, which were notified in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), were received by ADENET SYSTEMS, S.L. on March 10, 2022, and April 8, 2022, respectively, as evidenced by the acknowledgments of receipt in the file.

FOURTH: Regarding the requested information, ADENET SYSTEMS, S.L. has not submitted any response to this Spanish Agency for Data Protection.

FIFTH: On October 7, 2022, within the framework of file number EXP202209743, the Director of the Spanish Agency for Data Protection decided to archive the actions without having been able to determine the responsibility of ADENET SYSTEMS, S.L., since this entity has not responded to the two requests for information sent by this Agency. This Resolution was electronically notified to ADENET SYSTEMS, S.L. on October 21, 2022, as evidenced by the acknowledgment of receipt in the file.

SIXTH: The entity ADENET SYSTEMS, S.L. was sanctioned by resolution of the Director of this Agency on November 4, 2022, in file C/ Jorge Juan, 6

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EXP202208746, for facts distinct from those motivating the present procedure, but for the same infringing conduct of Article 58.1 of the GDPR, classified under Article 83.5 of the GDPR, which is now being charged again. The resolution of said sanctioning procedure is final and enforceable.

SEVENTH: According to the report obtained from the AXESOR tool, the entity ADENET SYSTEMS, S.L. is an SME (Microenterprise), established in 1996, with a turnover of 409,314 euros in 2020.

EIGHTH: On April 27, 2023, the Director of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against ADENET SYSTEMS, S.L., for the alleged infringement of Article 58.1 of the GDPR, classified under Article 83.5 of the GDPR.

NINTH: The aforementioned initiation agreement was notified in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP) and after the period granted for the submission of allegations, it has been confirmed that no allegations have been received from ADENET SYSTEMS, S.L.

Article 64.2.f) of the LPACAP -a provision of which ADENET SYSTEMS, S.L. was informed in the initiation agreement of the procedure- establishes that if no allegations are made within the stipulated

period regarding the content of the initiation agreement, when it contains a precise statement regarding the attributed responsibility, it may be considered a proposal for resolution. In this case, the initiation agreement of the sanctioning file determined the facts on which the accusation was based, the infringement of the GDPR attributed to the accused, and the sanction that could be imposed. Therefore, considering that ADENET SYSTEMS, S.L. has not made any allegations to the initiation agreement of the file and in accordance with the provisions of Article 64.2.f) of the LPACAP, the aforementioned initiation agreement is considered in this case as a proposal for resolution. In view of all that has been acted upon, the Spanish Agency for Data Protection considers the following facts as proven in the present procedure,

PROVEN FACTS

FIRST: The information requests indicated in the second antecedent were notified to ADENET SYSTEMS, S.L. in accordance with the provisions of the LPACAP and recorded as evidenced in the acknowledgments of receipt that are part of the file.

SECOND: ADENET SYSTEMS, S.L. has not responded to the information requests made by the Agency within the timeframes granted for this purpose.

THIRD: The notification of the initiation agreement of the present sanctioning procedure, which was carried out by electronic means in accordance with the rules established in the LPACAP, was not collected by ADENET SYSTEMS, S.L. within the availability period, as evidenced in the acknowledgment of receipt that is part of the file, being understood as rejected in accordance with Article 43.2.

FOURTH: ADENET SYSTEMS, S.L. has not submitted allegations to the initiation agreement of this sanctioning procedure within the specified timeframe for this purpose.

FIFTH: ADENET SYSTEMS, S.L. has a prior infringement sanctioned by a final resolution in file EXP202208746, for the same infringement that is now being charged.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), to each supervisory authority and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and guarantee of digital rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection will be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Obligation not fulfilled

In accordance with the evidence available, it is considered that ADENET SYSTEMS, S.L. has not provided the information requested by the Spanish Agency for Data Protection.

With the aforementioned conduct of ADENET SYSTEMS, S.L., the investigative power granted to supervisory authorities by Article 58.1 of the GDPR, in this case, the AEPD, has been obstructed. Therefore, the facts described in the "Proven Facts" section are deemed to constitute an infringement, attributable to ADENET SYSTEMS, for violation of Article 58.1 of the GDPR, which states that each supervisory authority shall have, among its investigative powers:

"a) to order the controller and the processor and, where applicable, the representative of the controller or the processor, to provide any information required for the performance of its functions; b) to carry out investigations in the form of data protection audits; c) to carry out a review of the certifications issued under Article 42, paragraph 7; d) to notify the controller or the processor of the alleged infringements of this regulation."

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Regulation; e) obtain from the data controller and the data processor access to all personal data and all necessary information for the exercise of their functions; f) obtain access to all premises of the data controller and the data processor, including any equipment and means of data processing, in accordance with the procedural law of the Union or the Member States.”

III

Classification and Qualification of the Infraction

In accordance with the available evidence, the facts presented are considered to constitute an infraction, attributable to ADENET SYSTEMS, S.L.

This infraction is classified under Article 83.5.e) of the GDPR, which defines it as: “failure to provide access in violation of Article 58, paragraph 1.”

The same article establishes that this infraction may be sanctioned with a fine of up to twenty million euros (€20,000,000) or, in the case of a company, an amount equivalent to four percent (4%) of the total annual global turnover of the previous financial year, opting for the higher amount.

For the purposes of the statute of limitations for infractions, the infraction attributed prescribes after three years, in accordance with Article 72.1 of the LOPDGDD, which qualifies the following conduct as very serious:

“ñ) Failure to provide access to the personal data, information, premises, equipment, and means of processing required by the competent data protection authority for the exercise of its investigative powers.

o) Resistance or obstruction of the exercise of the inspection function by the competent data protection authority.”

IV

Imposed Sanction

The fine imposed must be, in each individual case, effective, proportionate, and dissuasive, in accordance with the provisions of Article 83.1 of the GDPR. Consequently, the sanction to be imposed must be graduated according to the criteria established in Article 83.2 of the GDPR, and in accordance with the provisions of Article 76 of the LOPDGDD, regarding paragraph k) of the aforementioned Article 83.2 GDPR.

It is noted that no mitigating factors apply, and the following facts have been considered as aggravating:

- Art. 83.2 e) GDPR: any previous infraction committed by the data controller or the data processor. On November 4, 2022, the Director of the Spanish Agency for Data Protection issued a resolution in sanctioning procedure number EXP202208746, followed against ADENET SYSTEMS, S.L., by which this entity was imposed a fine of 3,000 euros for an infraction of Article

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58.1 of the GDPR, classified under Article 83.5 of the GDPR. Against the aforementioned resolution, notified to ADENET SYSTEMS, S.L. on November 16, 2022, no ordinary administrative appeal can be made due to the expiration of the established deadlines. Furthermore, the interested party has not expressed their intention to file a contentious-administrative appeal, nor does this Agency have knowledge that such an appeal has been filed or that a precautionary suspension of the resolution has been requested.

In light of the facts presented, it is considered appropriate to charge ADENET SYSTEMS, S.L. for the violation of Article 58.1 of the GDPR classified under Article 83.5 e) of the GDPR. The sanction to be imposed is an administrative fine in the amount of 6,000.00 euros.

Therefore, in accordance with the applicable legislation and having assessed the criteria for the graduation of sanctions whose existence has been established, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO IMPOSE on ADENET SYSTEMS, S.L., with NIF B47387253, for a violation of Article 58.1 of the GDPR, classified under Article 83.5 of the GDPR, a fine of 6,000.00 euros (SIX THOUSAND euros).

SECOND: TO ORDER ADENET SYSTEMS, S.L. to provide, in accordance with the investigative power established in Article 58.1.a) of the GDPR, the information requested in the requirements made within the framework of the proceedings numbered EXP202209743 and referred to in the background of this resolution, within a period of ten working days.

It is warned that failure to comply with the requirements of this agency may be considered an administrative violation in accordance with the provisions of the GDPR, classified as a violation in Article 83.6, which may lead to the initiation of further administrative sanctioning proceedings.

THIRD: TO NOTIFY this resolution to ADENET SYSTEMS, S.L.

FOURTH: To warn the sanctioned party that they must pay the imposed sanction once this resolution becomes executive, in accordance with the provisions of Article 98.1.b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter LPACAP), within the voluntary payment period established in Article 68 of the General Collection Regulation, approved by Royal Decree 939/2005, of July 29, in relation to Article 62 of Law 58/2003, of December 17, by making the payment, indicating the NIF of the sanctioned party and the procedure number that appears in the heading of this document, into the restricted account No.

IBAN: ES00-0000-0000-0000-0000-0000 (BIC/SWIFT Code: CAIXESBBXXX), opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A. Otherwise, collection will proceed in the executive period.

Upon receipt of the notification and once it is executive, if the date of executive status falls between the 1st and the 15th of each month, inclusive, the deadline for voluntary payment will be until the 20th of the following month or the next working day, and if it falls between the 16th and the last day of each month, inclusive, the payment deadline will be until the 5th of the second following month or the next working day.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law. Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the firm resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by writing to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency

[<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of Law 39/2015, of October 1. They must also provide the Agency with documentation proving the effective filing of the contentious-administrative appeal. If the Agency does not have knowledge of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, the precautionary suspension would be considered terminated.

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